



Trespass to Land

Week 15

Lecture 29 (Part A)

Dr Sarah Gilmartin

s.gilmartin@lancaster.ac.uk

Drop-in Hours: Mondays 10:30-12:30

The Property Torts

- Occupiers' Liability Acts (covered with Dr Blakely Weeks 11-12)

Now....

- Trespass to Land
- Private Nuisance
- The Rule in *Rylands v Fletcher*
- Public Nuisance (a special remedy)



Elements of Trespass to Land

Property tort – one of the first actions to emerge in the common law

Direct interference (eg stepping onto someone's land or placing an object on someone's land)

Intentional act (**not** intentional trespass)

Actionable per se (no proof of harm required)

C must own or be in possession of the land concerned

Is the sky above land?

- *Lord Bernstein v Skyviews and General Ltd* [1978] QB 479

compare with...

- *Anchor Brewhouse Developments Ltd v Berkley House (Docklands Developments) Ltd* (1988) 4 Const. L.J. 29

For a more recent discussion of Section 76 of the Civil Aviation Act 1982 see: *Anglo International Upholland Ltd v Wainwright* [2023] 5 WLUK 613. See also: *MBR Acres Ltd v Curtin* [2025] EWHC 331 re: drone use.



Is underground land?

*Star Energy Weald Basin
Ltd and another
(Respondents) v Bocardo
SA (Appellant)
[2010] UKSC 35*



Immediate and exclusive possession



Own home



Parent's home



Rental property



Key: A right to exclude another



N.B. Broader than some of the other property torts



Direct Interference

- For example:
 - throwing objects onto a neighbour's land;
 - sitting on a wall;
 - stepping over a boundary;
 - mining...

Key: Distinguishable from indirect interference (nuisance).

Indirect interference examples = noise; smells; other interferences with someone's use and enjoyment of their property.





Intention

- Intention to make contact

You do **not** need:

- intention to trespass; or
- intention to cause harm

League Against Cruel Sports v Scott [1986] QB 240:
'the master will be liable for trespass if he intended to cause hounds to enter such land, or if by his failure to exercise proper control over them he caused them to enter such land.' (at 252 per Park J)

Defences & Remedies to Trespass to Land

- **Defences**

- Permission (License or Consent)
- Legal justification (*Jeffrey v Black* [1978] Q.B. 490 – trespass ab initio)
- Necessity (*Esso Petroleum Co Ltd v Southport Corp* [1956] A.C. 218 and *Rigby v Chief Constable of Northamptonshire* [1985] 1 W.L.R. 1242)

N.B. It is no defence to argue mistaken belief (even if reasonable).

- **Remedies**

- Damages (nominal where no damage)
- Injunction



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Now Lecture 29 (Part B)...

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